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Jose

Juan Morales Gomez, et al. vs AHMC Healthcare, Inc., et al.

Motion

for Summary Judgment

Moving Party: Defendants AHMC Healthcare, Inc., and AHMC Monterey Park Hospital, LP dba Monterey Park Hospital

Responding Party: None

Tentative Ruling: Deny

BACKGROUND

On October 3, 2024, Plaintiffs Jose Juan Morales

Gomez ("Gomez") and Margarita Morales ("Morales")

(collectively

"Plaintiffs") filed a complaint against Defendants AHMC Healthcare, Inc.

("AHMC"), AHMC Monterey Park Hospital, LP dba Monterey Park Hospital ("Monterey

Park Hospital"), David Duarte, M.D. ("Dr. Duarte"), and Does 1 to 100, and alleging

general negligence based on medical malpractice.

On February 25, 2025, default was entered against

Dr. Duarte.

Defendants AHMC and Monterey Park

Hospital (collectively "Defendants") now move for summary judgment. No opposition was filed.

MOVING

PARTY POSITION

Defendants

argue that they are entitled to summary judgment because the undisputed facts, supported by medical expert testimony, demonstrate that Plaintiffs cannot establish the elements of their medical malpractice against Defendants. There is no evidence to support the allegations that Defendants were negligent in the nursing care they provided, and the undisputed evidence shows that Defendants complied with applicable standard of care in doing so and did not cause or contribute to Plaintiffs' alleged injuries. This is also supported by the declaration of Defendants' expert Howard Kaufman, M.D.

OPPOSITION

No

opposition was filed.

REPLY

No reply was filed.

ANALYSIS

I.

Legal

Standard

"[T]he party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law[.] There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof." (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850.) "[T]he party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact." (Ibid.)

“On a summary judgment motion, the court must therefore consider what inferences favoring the opposing party a factfinder could reasonably draw from the evidence. While viewing the evidence in this manner, the court must bear in mind that its primary function is to identify issues rather than to determine issues. Only when the inferences are indisputable may the court decide the issues as a matter of law. If the evidence is in conflict, the factual issues must be resolved by trial.”

(Binder v. Aetna Life Ins. Co. (1999) 75 Cal.App.4th 832, 839

[cleaned up].) Further, “the trial court

may not weigh the evidence in the manner of a factfinder to determine whose version is more likely true. Nor may the trial court grant summary judgment based on the court’s evaluation of credibility.” (Id. at p. 840

[cleaned up]; see, also, Weiss v. People ex rel. Department of Transportation (2020) 9 Cal.5th 840, 864 [“Courts deciding motions for summary judgment or summary adjudication may not weigh the evidence but must instead view it in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party.”].)

II. Discussion

To

start, “[t]he pleadings play a key role in a summary judgment motion” because “the burden of a defendant moving for summary judgment only requires that he or she negate plaintiff’s theories of liability as alleged in the complaint; that is, a moving party need not refute liability on some theoretical possibility not included in the pleadings.” (Hutton v. Fidelity National Title Co. (2013) 213 Cal.App.4th 486, 493, emphasis in original.)

In

their complaint, Plaintiffs allege that Gomez was a patient of Defendants and Dr. Duarte from approximately April 1, 2024, through July 30, 2024. (Compl., at p. 4.) Plaintiffs allege that, during this period of time, Defendants breached their duty of care by negligently treating Gomez’s medical, including surgeries performed in April and May of 2024. (Ibid.) Plaintiffs allege that Gomez was injured as a result of this negligent treatment and that his spouse Morales also suffered a loss of consortium. (Id. at p. 5.)

Defendants

move for summary judgment based on the nonexistence of triable issues of fact as to their breach of the applicable standard of care and as to causation.

“[I]n

any medical malpractice action, the plaintiff must establish: ‘(1) the duty of the professional to use such skill, prudence, and diligence as other members of his profession commonly possess and exercise; (2) a breach of that duty; (3) a proximate causal connection between the negligent conduct and the resulting injury; and (4) actual loss or damage resulting from the professional’s negligence.’ [Citation.]” (Hanson v.

Grode (1999) 76 Cal.App.4th 601, 606, as modified (Nov. 29, 1999) [quoting Gami v. Mullikin Medical Center (1993) 18 Cal.App.4th 870, 877].)

“Where,

as here, the material issues framed by the complaint are whether the conduct of a medical professional fell below the standard of care and proximately caused the plaintiff’s injury, expert testimony is required to establish the reasonable degree of skill, knowledge, and care ordinarily possessed and exercised by members of the medical profession under similar circumstances

[citation], as well as whether the defendant’s conduct proximately caused the plaintiff’s injuries within a reasonable medical probability [citation].” (Zaragoza v. Adam (2025) 109

Cal.App.5th 113, 118–119, review denied (June 11, 2025).) “[T]he opinion of any expert is only as good as the facts and reasons on which it is based” [citation], and the trial court

‘properly act[s] as a gatekeeper to exclude speculative expert testimony’

[citation].” (Id. at p. 119,

alterations in original.)

Here,

the following material facts are undisputed:

At all times herein, Dr. Duarte was a physician providing medical and

surgical services at Defendants between April and July 2024. Dr. Duarte was not

an agent or employee of Defendants at any time. On April 24, 2024, Plaintiff Jose Juan Morales Gomez

was admitted to Monterey Park Hospital for acute appendicitis. Dr. Duarte

performed the laparoscopic appendectomy under general anesthesia on April 25,

2024. Plaintiff remained at Monterey

Park Hospital for his post-surgical care by Defendants’ staff until he was

ordered discharged by Dr. David Duarte on April 27, 2024. (Defendant’s Separate Statement of Undisputed

Material Facts (“SSUMF”) ¶¶ 1–4.)

The

following day, on April 28, 2024, Plaintiff returned to the emergency department of Monterey Park Hospital with complaints of an ongoing fever and right quadrant abdominal pain. A CT performed in the emergency department revealed residual appendix stump, wall thickening, and inflammation of the ascending colon and terminal ileum. Plaintiff was admitted to Monterey Park Hospital that same day on April 28, 2024. Subsequently, Dr. Duarte performed an exploratory laparotomy where the physician found an intraabdominal hematoma, and ischemic necrosis of the right colon and terminal ileum which the physician removed. Plaintiff remained at Monterey Park Hospital for treatment of sepsis and necrotic bowel through discharge on July 16, 2024. (SSUMF ¶¶ 5–7.)

Plaintiff

returned to the emergency department of Monterey Park Hospital eight days later on July 24, 2024, with reports of abdominal pain. He was admitted to Monterey Park Hospital for observation and treatment. During his six-day hospital admission through July 30, 2024, Plaintiff was treated for an intra-abdominal abscess. He was followed by Dr. Duarte and infectious disease. Plaintiff continued to improve and stabilize through his discharge on July 30, 2024, when he was instructed to follow up as an outpatient with Dr. Duarte. Following his discharge, Defendants' staff had no further involvement in the Plaintiff's care. (SSUMF ¶¶ 8–10.)

Defendants

seek to establish the nonexistence of triable issues of material fact regarding their breach of the applicable standard of care by relying on the opinions of their expert, Howard Kaufman, M.D.

Here,

Dr. Kaufman opines as follows:

Based upon my review of the above-referenced materials, as well as my education, training, and experience, it is my opinion that, to a reasonable degree of medical probability, Defendants and their nursing and hospital staff met the standard of care at all times during their care and treatment of the plaintiff at Monterey Park Hospital between April 24, 2024, and July 30, 2024. It is further my opinion that, to a reasonable degree of medical probability, no act or omission by Defendants, or their nursing and other staff was the cause, or substantial factor in causing, plaintiff's injuries.

(Kaufman
Decl. ¶ 5.)

Dr. Kaufman next offers the following opinion on the cause of Plaintiff's alleged injuries: "When Dr. David Duarte performed the laparoscopic appendectomy under general anesthesia on April 25, 2024, the entire appendix was not removed. To a reasonable degree of medical probability, this is the only reason the plaintiff suffered injuries and damages including infection and prolonged hospitalization." (Kaufman Decl. ¶ 6.)

Dr. Kaufman finally opines that, "[t]o a reasonable degree of medical probability, plaintiff's sepsis, necrotic bowel, and prolonged hospital course, were due solely to the infection which developed from the remaining appendix, a condition known as stump appendicitis, following incomplete removal of the appendix on April 25, 2024." (Kaufman Decl. ¶ 7.)

"A moving defendant's 'burden to show the absence of any genuine issue of material fact cannot be satisfied by an expert declaration consisting of ultimate facts and conclusions that are unsupported by factual detail and reasoned explanation, even if it is admitted and unopposed.'"

(Zaragoza, supra, 109 Cal.App.5th at p. 119 [quoting Doe v. Good Samaritan Hospital (2018) 23 Cal.App.5th 653, 657].) Although Dr. Kaufman provides a list of the supporting facts underlying his opinions, Dr. Kaufman critically fails to provide any reasoned explanation for these opinions. (See Kaufman Decl. ¶¶ 4–7.) In particular, Dr. Kaufman does not describe the applicable standard of care and does not elaborate or explain why Defendants' treatment and care of Plaintiff was within this standard of care. Nor does Dr. Kaufman explain whether the failure to remove Plaintiff's entire appendix during the laparoscopic appendectomy was a type of complication that can occur even when the procedure is performed by the surgeon with due care, or why the infection that developed from the "stump appendectomy" could not have been caused by Defendants' negligence in their treatment and care of Plaintiff following the surgery. Nor does he offer sufficient factual detail to support any of his conclusory opinions regarding the cause of Plaintiff's injuries and the standard of care. (Cf. Bushling v. Fremont Medical Center (2004) 117 Cal.App.4th 493, 509 ["The expert has given an explanation for that expert's conclusion that defendants are not guilty of medical malpractice: Based on the expert's experience and the patient's medical records, there is no evidence to support a claim of

negligence as a cause of injury. The reason for the opinion is the absence of evidence of medical malpractice. That opinion is significantly different than one that concludes that the standard of care has not been met resulting in an injury, but fails to give a reasoned explanation, based on facts and not on speculation, of why the expert has come to those conclusions."].)

Thus, as Dr. Kaufman's standard of care and causation opinions are unsupported by factual detail and reasoned explanation, the Court finds that Defendants failed to carry their initial burden.

Therefore, the motion for summary judgment is denied.

RULING

Defendants

AHMC Healthcare, Inc., and AHMC Monterey Park Hospital, LP dba Monterey Park Hospital's Motion for Summary Judgment is DENIED.